



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES of the MEETING
Tuesday, October 11, 2022, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting to be held on Tuesday, October 11, 2022, at 7:00 PM at the Town Offices, 1 South Road, and via video-conference.¹

Call to Order

The meeting was called to order at 7 PM by Phil Dowling, Chair.

PRESENT: Phil Dowling, Maureen Dempsey, Scott Johndrow

ALSO PRESENT: Police Chief David White; Police Sergeant Jeff Fish; Mr. Jason Graham; Fire Chief David Antosz; Highway Superintendent Bill Jablonski; Ms. Carolyn Whipple; Douglas Finn.

Present from "Westhampton Connects" Committee: Ms. Susan O'Rourke, Ms. Susan Bronstein.

Present from the Board of Assessors: Mr. Walter Morrey, Ms. Marilyn Witherell, Ms. Winnie Gorman. Also present: Mr. David Zagorski, Assessors Assistant.

PRESENT BY REMOTE CONFERENCING: Mary Lou Burgess

TAX CLASSIFICATION HEARING

In accordance with Section 56 of Chapter 40 of the General Law, the Westhampton Selectboard will conduct a public hearing on the question of adoption of percentages of the total tax levy to be borne by each class of real property (residential, open space, commercial, industrial, and personal property) for Fiscal Year 2023. The hearing will be held on Tuesday, October 11, 2022, 7:00 PM at the Town Hall, 1 South Road. All interested parties are invited to attend and will be heard.

Presentation

The written recommendation was read, with brief comments made.

Public Comment

There was no public comment.

¹ Pursuant to Chapter 20 of the Acts of 2021, the meeting was conducted as a "hybrid" (in-person / remote) meeting. Members of the public could access the meeting in person, or connect via "zoom" teleconferencing via internet – Meeting ID#: 870 4390 0582.

Deliberation / Decision

After brief deliberation, it was MOVED by Dowling SECONDED by Johndrow

To adopt a Single Tax Rate for all classes of property, with no Open Space discount, no Residential Exemption, and no Small Commercial Exemption, for Fiscal Year 2023.

VOTED: 3, 0, 0. (7:07 PM)

DEPARTMENT AND COMMITTEE UPDATES

Westhampton Connects (Sue O'Rourke, Barbara Pelissier, Susan Bronstein)

Ms. O'Rourke described the purpose of the group – to improve the quality of life of Westhampton residents – through various activities, studies, and other work.

Ms. O'Rourke noted that the group is working to create an organic community garden both at the Westhampton Elementary school and Hampshire Regional School, with significant support from the administration of both schools.

A letter from Lindsay Sabadosa was read into the record; Ms. Sabadosa noted her support for the project.

There was concern about use of non-organic fertilizers in the immediate vicinity of the garden; the Selectboard advised that it would be under the purview of the Schools to help ensure that.

Q: Would the public be allowed to use plots within the garden?

A: Yes; and we have survey results noting such interest.

There was extensive discussion about provision of water to the garden, with the proponents asking the Fire Department to fill water tanks on a semi-regular basis; Mr. Jablonski noted that might be a difficult ask, and that it should not be relied upon as a long-term solution. No definitive decision was made, but it was generally agreed that the Town could continue conversations and to work in good faith to the best of its ability.

Highway (Bill Jablonski)

Recent work: roadside mowing continued; the second roadside mowing tractor was removed from service (term of use was concluded); staff attended Baystate Roads training; additional work on the Public Safety Complex, including bollards around the building, and on the grounds; the transfer station had its annual 'third party' inspection; new guardrail was installed on Chesterfield Road, replacing old and deteriorated railing; plow frames have been installed on most plow trucks.

TRANSFER STATION MANAGEMENT - Board of Health / Highway Superintendent roles and responsibilities.

Mr. Dowling addressed the matter by outlining the history of the project, and clarified that the Selectboard have entrusted the day-to-day operations of the Transfer Station to the Highway Superintendent; to that end, decisions as to what materials can or should be collected for recycling, and how those materials are handled, are within that purview.

Ms. Armenti: Will Styrofoam not be recycled? Mr. Jablonski: correct - it's no longer cost efficient or cost effective, as no other surrounding towns are conducting recycling of Styrofoam, meaning that Westhampton would be required to bear the entire cost (about \$500 for trucking, plus the recycling cost of the materials).

Dempsey: Does the HRMC have suggestions as to how to recycle Styrofoam?

There was extensive discussion related to how, where, and what types of Styrofoam can or cannot be recycled.

Health (Robby Armenti)

Ms. Armenti introduced Ms. Bri Eichstaedt, and Ms. Katch Bacheller (Chair) from the board of health. Their next regular meeting would be at 7 PM on Thursday, October 20, 2022, at the Town Offices.

Public Safety Building (Phil Dowling)

Mr. Dowling noted that paving is anticipated to be done the week of October 24-28, weather permitting. Mr. Jablonski noted that costs appear to increase daily, and prevailing wage is a significant factor in the cost of the project.

There was some discussion related to the costs of fencing to be placed around the retaining wall. The next meeting of the Public Safety Building Committee was posted for Wednesday, October 12, 6:00 PM.

Mr. Dowling noted that the overall cost increases to the project are driven by the change in scope to add spray-foam insulation; however, the increases are roughly about 2.5% of the overall project costs (Dempsey: "That's not too bad at all.") Mr. Dowling also noted that the overall repayment of the building cost will be about \$900,000 less than expected due to securing an extremely low interest rate. He also noted that a similar project recently commenced by Williamsburg is a smaller building, and expected to cost at least \$1M more.

The building is anticipated to be ready for storage of fire equipment within four to six weeks; the overall project will be concluded in mid-winter. A 'ribbon cutting' event will likely happen in the Spring of 2023.

MVP (Teri Anderson)

Mr. Finn noted that the Master Plan "Visioning" Session will be held at the Westhampton Elementary School on Wednesday, October 26, 2022, from 7 to 9, and encouraged residents to sign-up and attend. Posters are being placed around town, and notices going out through the Town's website, social media, and etc.

DOG COMPLAINT– Tad Weiss (Noble, 4 Perry Hill Rd Ext.)

In accordance with Section 157, Chapter 140, General Laws, the Selectboard reviewed a complaint filed by Mr. Tad Weiss, in regard to an alleged incident of a dog bit occurring on or about September 10, 2022. Mr. Dowling reviewed the process for management of such complaints, and noted that the only step to be taken is to direct an investigation be conducted by the Police Department and/or such agents as they see fit.

After reviewing the written complaint, it was MOVED by Dowling, SECONDED by Dempsey

That the Selectboard direct the Chief of Police to make an investigation of said complaint, including an examination of facts and conditions as exist in connection with the case, and submit a report to the Selectboard.

VOTE: 3, 0, 0 (7:39 PM)

The need for an appointed ACO in Westhampton was briefly discussed.

ADMINISTRATIVE

Appointment: Margot Cleary to Westhampton Cultural Council

An application for appointment to the Westhampton Cultural Council was reviewed. It was MOVED by Johndrow, SECONED by Dempsey

To appoint Ms. Margot Cleary to the Westhampton Cultural Council, said term to take effect on October 12, 2022, for a duration of three years.

VOTED: 3, 0, 0. (7:43 PM)

Review Correspondence

An article published by the MMA regarding the state ARPA funding distribution was reviewed and briefly discussed. It was noted that the state has been lobbied by the Mass. Municipal Association to complete disbursement of ARPA funds as quickly as possible.

Review of Payroll and A/P Warrants

Payroll WP23-08 was reviewed:

It was MOVED by Dempsey, SECONDED by Johndrow

To approve and sign as presented.

VOTED: 3, 0, 0 (7:49 PM)

A/P Warrant W23-08

It was MOVED by Dempsey, SECONDED by Johndrow

To approve and sign as presented.

VOTED: 3, 0, 0 (7:50 PM)

Review / Approve Minutes

The minutes of September 26, 2022 were reviewed.

It was MOVED by Dowling, SECONDED by Johndrow

To approve the minutes as presented.

VOTED: 3, 0, 0. (7:50 PM)

Set date for next meeting(s)

Mr. Finn noted that the next meeting would be Monday, October 24, 2022.

OTHER NEW BUSINESS (may include items not reasonably anticipated at time of posting)

Mr. Jablonski noted that the Town had a number of surplus items (including an unused generator other smaller equipment) that should be disposed of, and requested permission to post the items on MunicBid. Mr. Finn noted that procurement rules require that the equipment should be declared as surplus prior to disposal. Mr. Jablonski said he would work up a list of equipment and bring it to the Board for review.

Treasurer

Mr. Dowling noted that, during a recent conversation, the Treasurer had informed him of her intention to quit, and suggested that the Town post the position. Mr. Dowling noted that he had requested Mr. Finn to post the position. Mr. Finn noted that the position had been posted, and at least one response received.

There was discussion about the structure of the financial department, the value of a separate treasurer and collector, each serving as backup for the other. Mr. Dowling noted that the existing description had been reviewed by the Accountant, who had provided some suggestions, and by the Tax Collector, who noted that she had not seen the description before.

There was discussion relative to the current status of Treasurer's work; Mr. Dowling noted that there was still a small amount of outstanding work remaining necessary to close out FY2022, and FY2023 receipts had not yet been entered.

Mr. Dowling noted his hope that the Tax Collector would continue to assist the Treasurer's office, particularly through the transition.

Mr. Finn asked if a Screening Committee would be formed. The board generally agreed, and agreed that Ms. Dempsey would lead the committee. It was also generally agreed that the Accountant and Collector should be invited to participate.

Mr. Dowling noted that the salary could very well be a sticking point, and that an adjustment in the near future should be considered.

Mr. Johndrow noted that there were a number of positions where the rate of pay should be reviewed for consistency with the region.

There was some discussion about rates of pay, how they could be reviewed, the impact of insurance premiums on take-home pay, the federal "Cost of Living Adjustment" for social-security, the per-thousand tax rate as changed over time, and how Westhampton compares with other towns.

Executive Session

Mr. Finn requested an executive session to discuss and determine strategy for ongoing litigation.

It was MOVED by Dowling SECONDED by Johndrow

To enter into executive session to discuss strategy with respect to collective bargaining or litigation, as an open meeting may have a detrimental effect on the bargaining or litigating position of the public body, the chair so declaring.

VOTED: DOWLING: YES; DEMPSEY: YES; JOHNDROW: YES

The board entered executive session at 8:10 PM.

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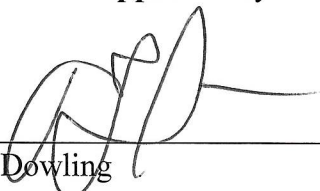
The board left executive session at 8:22 PM.

Adjourn

Having so voted to do so in Executive Session, the board stood adjourned at 8:22 PM.

Respectfully submitted,
Douglas C. Finn

Approved by a vote of the Selectboard at a regular meeting, held on _____, 2022.



Phil Dowling



Maureen Dempsey



Scott Johndrow